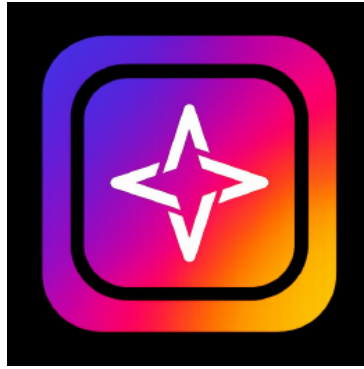




SPARKLE

PRIVACY POLICY & PLATFORM POLICY SUITE

Kenya Edition • Version 1.0 • Effective 23 August 2026

Document owner	Sparkle Team
Founder & CEO	Don Babu
Official account	@sparkleofficialaccount
Primary jurisdiction	Kenya
Review status	Production-policy draft; legal review required before publication

Purpose. This document contains Sparkle's public-facing Privacy Policy and supporting operational policies that are not intended to replace the General Terms & Conditions or Kenya Community Guidelines. It is designed to explain what data Sparkle may process, why it is processed, how users can exercise rights, and how major platform-risk areas are governed.

Important legal note: This is a detailed product-policy draft. Sparkle should insert its actual registered legal entity, registered address, privacy contact, DPO details where applicable, processors, retention schedules, cross-border transfer arrangements and final complaint channels before publishing it as a binding notice.

DOCUMENT MAP

- A. Privacy Policy
- B. Data Subject Rights & Request Procedure
- C. Cookies, SDKs, Analytics & Tracking Policy
- D. Data Retention, Deletion & Account Closure Policy
- E. Security & Incident Response Policy
- F. Children's Safety & Age Assurance Policy
- G. Content & Media Processing Privacy Rules
- H. Messaging & Communications Privacy Policy
- I. Ghost Privacy & Anonymous-Interaction Policy
- J. Search, Discovery & Recommendation Privacy Rules
- K. Creator, Advertising & Monetization Data Policy
- L. Third-Party Services & International Transfers Policy
- M. Copyright / Intellectual Property Notice Procedure
- N. Law-Enforcement & Legal Requests Policy
- O. Data Breach & User Notification Policy
- P. Account Recovery & Identity Security Policy
- Q. Moderation Evidence & Appeals Data Policy
- R. Accessibility, Fairness & Non-Discrimination Commitment
- S. Governance, Audit & Policy Change Register
- T. Contact & Legal Reference Sources

Relationship between documents: The General Terms & Conditions govern the contractual relationship; the Community Guidelines govern content and conduct; this Policy Suite explains privacy, data handling, security and related operational practices. If a feature-specific notice conflicts with a mandatory legal right, the mandatory legal requirement controls.

A. PRIVACY POLICY

A.1 Who we are. Sparkle is a social and communications platform operated by the Sparkle team. The final published notice must identify the exact legal entity that determines the purposes and means of processing personal data. The current draft identifies the product owner as Sparkle Team and founder/CEO as Don Babu; these labels are not a substitute for the operator's legal registration details.

A.2 What this policy covers. This policy applies to the Sparkle applications, websites, APIs, messaging, profiles, posts, stories, comments, live features, creator tools, payments and other services that expressly link to it.

A.3 Data protection principles. Sparkle should process personal data lawfully, fairly and transparently; for specified legitimate purposes; only to the extent necessary; accurately; with appropriate retention; and with appropriate safeguards. Kenya's ODPC identifies these principles and data-subject rights under the Data Protection Act framework. [\[cite\]](#)[turn0search0](#)[turn0search1](#)

A.4 Categories of information. Depending on features used, Sparkle may process:

- Account data: name, username, phone number, email address, date of birth/age information, profile photo, biography and account settings.
- Authentication data: password-derived credentials, OTP events, sessions, device identifiers, recovery information and security logs.
- Content: posts, comments, stories, images, video, audio, voice notes, live material, reactions, profile elements and messages.
- Social graph: follows, followers, blocks, mutes, groups, interactions and relationship states.
- Technical data: IP address, device type, operating-system information, application version, crash information, network information and diagnostic events.

- Location data: only where the feature and user settings permit collection; precise location should not be collected merely because a device can provide it.
- Usage data: feature interactions, search queries, views, clicks, engagement, session events and security signals.
- Transaction data: payment status, purchase/subscription records, transaction identifiers and fraud-prevention signals; payment-card credentials should be handled by the appropriate payment provider where possible.
- Safety data: reports, moderation decisions, appeal information, abuse indicators and security evidence.
- Derived information: recommendations, safety risk signals, spam classifications and other operational inferences used to run the service.

A.5 Why we process information. Purposes may include:

- creating and maintaining accounts;
- authenticating users and securing sessions;
- delivering posts, stories, messages and notifications;
- storing and transcoding media;
- providing search, discovery and recommendations;
- preventing fraud, spam, abuse and account takeover;
- moderating content and enforcing the Community Guidelines;
- processing subscriptions, payments and creator monetization;
- providing customer support and handling complaints;
- measuring reliability, performance and crashes;
- complying with legal obligations and lawful requests;
- protecting users, Sparkle and third parties from serious harm;
- conducting aggregated analytics and product improvement.

A.6 Lawful bases. The applicable basis depends on the processing. Potential bases include consent, performance of a contract, legal obligation and legitimate interests, subject to Kenyan law and the actual facts of the processing. ODPC materials identify these lawful-basis categories. [cite]turn0search8[

A.7 Consent. Where Sparkle relies on consent, consent should be specific, informed and capable of withdrawal. Withdrawal does not automatically invalidate processing that was lawfully performed before withdrawal.

A.8 Public content. Content intentionally made public may be visible to other users. Public visibility does not mean Sparkle has sold ownership of the content.

A.9 Private content. Privacy settings limit ordinary user access but cannot guarantee that a recipient will not screenshot, copy, record, forward or otherwise disclose content.

A.10 Data sharing. Sparkle may share information with service providers and processors needed to operate the platform, payment providers, security providers, analytics providers, hosting/media providers, professional advisers and authorities where legally required or otherwise permitted. Sparkle should not sell personal data in a manner inconsistent with the published notice.

A.11 Data minimisation. Features should be designed so that unnecessary personal data is not collected. Optional permissions should be separable from core service access wherever practical.

A.12 Accuracy. Users may correct profile and other inaccurate information through available controls or by submitting a request.

A.13 Retention. Data should be retained only for as long as necessary for the stated purpose, applicable legal obligations, security, dispute resolution and documented backup requirements. Kenya's regulations expressly address retention. [cite]turn0search12[

A.14 Children's data. Sparkle must apply heightened safeguards to children's data and age-sensitive features. The actual age-assurance and parental-control design must match the deployed product and applicable Kenyan law.

A.15 Security. Sparkle should apply access control, encryption in transit, appropriate encryption/protection at rest, logging, secret management, vulnerability handling, backup controls and incident response.

A.16 Cross-border processing. Where data is processed outside Kenya, Sparkle must assess and implement the required safeguards and disclosures. ODPC materials specifically identify conditions for transfers outside Kenya. [\[cite\turn0search0\turn0search4\]](#)

B. DATA SUBJECT RIGHTS & REQUEST PROCEDURE

Subject to applicable law and lawful limitations, users may have rights to be informed, access personal data, request correction, request erasure, object to processing, restrict processing and request portability. ODPC expressly lists these rights. [\[cite\turn0search0\turn0search2\]](#)

- 1 Open the in-app privacy/data controls where available.
- 2 If the requested action cannot be completed in-app, submit a request through Sparkle's designated privacy channel.
- 3 Provide enough information for Sparkle to verify the requester without unnecessarily collecting additional identity information.
- 4 Sparkle may ask for reasonable verification where disclosure could expose another person's data.
- 5 Sparkle should acknowledge and process requests within applicable legal timelines.
- 6 Where a request is refused or limited, Sparkle should explain the applicable reason to the extent legally permitted.
- 7 Requests involving another person's information may be limited or refused.
- 8 Emergency safety, fraud, legal-retention and security exceptions may affect deletion or access.

Data portability. Where legally applicable and technically feasible, Sparkle may provide data in a structured, commonly used format. Portability does not require Sparkle to export another user's private information.

Complaints. Users should first contact Sparkle through its published privacy channel. A user may also have the right to complain to the Office of the Data Protection Commissioner (ODPC). [\[cite\turn0search2\turn0search7\]](#)

C. COOKIES, SDKs, ANALYTICS & TRACKING POLICY

Sparkle may use cookies, local storage, SDKs, device identifiers and similar technologies for authentication, security, preferences, reliability, analytics and feature delivery.

- Strictly necessary: authentication, security, session management and core functionality.
- Preference: language, theme, accessibility and user settings.
- Analytics: performance, crashes and aggregate product usage, subject to applicable consent requirements.
- Advertising/marketing: only where applicable and subject to the required controls and notices.
- Anti-abuse: device and behavioural signals used to detect automated abuse, fraud and account takeover.

Users should receive appropriate controls where consent is legally required. Rejecting non-essential tracking should not disable core account functionality unless the feature genuinely requires that processing.

D. DATA RETENTION, DELETION & ACCOUNT CLOSURE POLICY

Data class	Typical retention approach
Active account data	Retained while the account is active and for documented post-closure periods where necessary.
Posts/stories/media	According to user deletion, feature lifetime, backups and legal/safety retention requirements.
Messages	According to delivery, deletion/disappearing-message design, backups, safety and legal requirements.
Security logs	Retained for security/fraud purposes for a documented limited period.
Payment records	Retained according to accounting, tax, dispute and legal requirements.
Moderation evidence	Retained as necessary for enforcement, appeals, abuse prevention and legal obligations.
Backups	Deleted data may remain in encrypted backups until the applicable backup cycle expires.

Deletion is not always immediate. Account deletion may require propagation through caches, indexes, media processing systems and backups. Sparkle should distinguish between deletion from ordinary user-facing systems and expiry of residual copies retained for legitimate security, legal or backup purposes.

Reactivation. If Sparkle offers a recovery window, it should clearly disclose the window. After final deletion, recovery may no longer be possible.

E. SECURITY & INCIDENT RESPONSE POLICY

- Least-privilege access for employees and service accounts.
- Multi-factor authentication for privileged administrative access where supported.
- Secure password hashing and credential handling.
- Short-lived access tokens and secure refresh-token rotation.
- Encryption in transit and appropriate protection at rest.
- Secret management outside source code.
- Rate limiting, abuse detection and account-lockout controls.
- Security logging and audit trails for privileged actions.
- Dependency and vulnerability management.
- Backups protected against unauthorized access and accidental deletion.
- Documented incident-response ownership and escalation.

Security incident process: detect → classify → contain → preserve evidence → assess affected data → remediate → assess notification duties → communicate where required → rotate credentials/secrets → post-incident review.

Sparkle must not promise that security is perfect. Security controls reduce risk; they cannot guarantee that no breach will ever occur.

F. CHILDREN'S SAFETY & AGE ASSURANCE POLICY

Sparkle should treat age safety as a product-control system rather than relying solely on a birthday field. Features involving messaging, discovery, sensitive media and monetization should apply age-appropriate defaults.

- Do not permit child users to receive prohibited sexual content.
- Restrict inappropriate adult-to-child discovery and messaging where risk requires it.
- Prioritise reports involving grooming, sexual exploitation, solicitation and threats against minors.
- Do not use children's data for unrelated purposes.
- Apply age-appropriate privacy defaults.

- Do not help users circumvent age restrictions.
- Escalate credible exploitation reports under the applicable safety and legal workflow.

The final production policy should be reviewed against the Data Protection Act and applicable children's-law requirements before launch.

G. CONTENT & MEDIA PROCESSING PRIVACY RULES

When users upload media, Sparkle may temporarily process the file to deliver the feature. Processing can include virus/security checks, thumbnail generation, transcoding, metadata extraction, compression, moderation and storage.

Local-first uploads. A client may temporarily retain an upload locally while synchronization is pending. A local copy does not itself publish the content. Once synchronized, server-side rules apply.

Media metadata. Sparkle should avoid exposing EXIF/location metadata to other users unless the feature explicitly requires it and the user is informed.

Deletion. Deleting a media item should remove it from ordinary access and queue it for deletion from dependent systems, subject to legitimate retention exceptions.

H. MESSAGING & COMMUNICATIONS PRIVACY POLICY

Sparkle messaging should be described accurately. Unless a particular Sparkle product or chat explicitly states that end-to-end encryption is enabled, users should not assume that all messages are end-to-end encrypted.

- Message delivery may require processing by Sparkle infrastructure.
- Anti-spam and security systems may process limited metadata and, where the product architecture permits, content signals.
- Recipients can copy, screenshot, forward or disclose messages.
- Blocking should prevent ordinary direct interaction according to the feature design.
- Deleted or disappearing messages may persist temporarily in backups, caches or recipients' devices.
- Lawful requests may require disclosure of information Sparkle actually possesses.

Product-specific encryption notice. If Sparkle Messenger later uses E2EE while the main Sparkle application uses a different architecture, the two products should have separate, explicit encryption disclosures rather than one ambiguous statement.

I. GHOST PRIVACY & ANONYMOUS-INTERACTION POLICY

Ghost is a privacy/discoverability feature, not an untraceable identity. A Ghost interaction remains linked internally to a permanent account identifier for security, abuse prevention and lawful processes.

- Ghost search may conceal the searching account from ordinary users.
- Ghost story viewing may conceal viewer identity from the story owner.
- Ghost comments may conceal ordinary profile identity.
- Ghost reactions/likes may be aggregated or anonymized in the user interface.
- Ghost messages require rate limits and reporting controls.
- Premium Ghost identity-reveal features must be explicit, voluntary and safety-limited.
- A user may not use Ghost to evade a block, harassment restriction or suspension.
- Sparkle may internally associate Ghost activity with the underlying account.
- Ghost analytics should avoid exposing another person's identity unnecessarily.

J. SEARCH, DISCOVERY & RECOMMENDATION PRIVACY RULES

Search and recommendations may use signals such as followed accounts, interactions, language, approximate location where enabled, content preferences and safety signals. Sparkle should avoid exposing private-account data merely because it exists in an internal index.

- Blocked users should not ordinarily receive discoverability that defeats the block.
- Private accounts should have privacy-respecting search behaviour.
- Ghost settings should be respected by search and recommendation indexes.
- Deleted content should be removed from ordinary search indexes within the documented propagation process.
- Sensitive content may be excluded or down-ranked.
- Recommendation systems should include abuse and manipulation controls.

K. CREATOR, ADVERTISING & MONETIZATION DATA POLICY

Creator tools may process public engagement statistics, payout information, tax/verification information, transaction records and fraud signals. Advertisers may receive aggregate campaign performance rather than unnecessary personal identifiers.

- Sparkle should not expose a creator's private payout information publicly.
- Payment processors may receive the information necessary to complete transactions.
- Fraud controls may temporarily hold or review transactions.
- Targeting controls should be documented in the applicable advertising/privacy interface.
- Premium status does not exempt users from privacy or safety controls.

L. THIRD-PARTY SERVICES & INTERNATIONAL TRANSFERS POLICY

Sparkle may use infrastructure and specialist providers for hosting, media storage/transcoding, authentication, notifications, analytics, payments, security, customer support and other functions. Each processor should receive only the information necessary for its contracted purpose and be bound by appropriate confidentiality and security obligations.

Cross-border transfers must be assessed under applicable Kenyan law and protected using the safeguards required for the specific transfer. ODPC guidance and the Data Protection Regulations address transfer conditions. [\[cite\]turn0search0\[turn0search12\]](#)

M. COPYRIGHT / INTELLECTUAL PROPERTY NOTICE PROCEDURE

A rights holder may submit a copyright complaint identifying the protected work, the allegedly infringing material, contact information and the required statements/confirmations. Sparkle may remove, restrict or preserve material pending review. Fraudulent or abusive copyright claims may result in enforcement.

Users should not use copyright reporting to silence lawful criticism, commentary or other legally protected activity.

N. LAW-ENFORCEMENT & LEGAL REQUESTS POLICY

Sparkle may disclose information where legally required or otherwise permitted by applicable law. Requests should be reviewed through an authorized legal process. Sparkle should disclose only information reasonably within scope where law permits.

Emergency requests involving imminent serious harm may be handled through a designated emergency process, subject to applicable law.

O. DATA BREACH & USER NOTIFICATION POLICY

If Sparkle becomes aware of a qualifying personal-data breach, it should assess the nature, scope, affected data, likely impact and applicable notification obligations. Where notification is legally required, Sparkle should notify the appropriate authority and/or affected users within the applicable timeframe and manner.

Sparkle should not disclose technical details in a way that materially increases ongoing security risk.

P. ACCOUNT RECOVERY & IDENTITY SECURITY POLICY

- Permanent internal account IDs should remain stable even when usernames change.
- Support personnel must never request a user's password or full OTP.
- High-risk recovery should use additional verification.
- Recovery events should be logged and security notifications used where appropriate.
- A recovery process must not make it easy to take over another user's account.
- A recovered account should preserve its existing security and enforcement history where legally appropriate.

Q. MODERATION EVIDENCE & APPEALS DATA POLICY

Reports, moderation evidence and appeal records may contain sensitive information. Access should be restricted to authorized personnel and systems. Evidence should be retained only as long as necessary for enforcement, appeals, safety, legal compliance and audit purposes.

Report volume alone should not determine guilt. Coordinated false reporting should be detectable and itself subject to enforcement.

R. ACCESSIBILITY, FAIRNESS & NON-DISCRIMINATION COMMITMENT

Sparkle should design policies and enforcement to avoid unlawful discrimination. Accessibility should be considered in account controls, reporting, appeals, authentication and privacy settings. Automated systems should be monitored for material error patterns, and meaningful review should be available for important adverse decisions where practical.

S. GOVERNANCE, AUDIT & POLICY CHANGE REGISTER

- Maintain a current data inventory and data-flow map.
- Maintain records of processing purposes and lawful bases.
- Maintain processor/vendor records.
- Maintain retention schedules.
- Review privacy and security controls periodically.
- Conduct privacy impact assessments for high-risk processing where required.
- Document significant changes to data processing.
- Version-control public privacy notices.
- Train staff with access to personal data.
- Maintain incident and breach records.
- Review automated moderation/recommendation systems for privacy and fairness risks.

Policy changes. Material changes should be communicated through appropriate in-app, web or other legally required notices. The effective date and version should be visible.

T. CONTACT, COMPLAINTS & LEGAL REFERENCE SOURCES

Sparkle official account: @sparkleofficialaccount

Operator: Sparkle Team — replace with the final registered legal entity before publication.

Founder & CEO: Don Babu — product/leadership reference only; not a substitute for the operator's legal identity.

Privacy contact: [INSERT OFFICIAL PRIVACY EMAIL]

DPO / privacy officer: [INSERT IF APPLICABLE]

Legal requests: [INSERT OFFICIAL LEGAL EMAIL]

Security: [INSERT SECURITY / VULNERABILITY EMAIL]

Registered office: [INSERT REGISTERED ADDRESS]

KENYAN REFERENCE SOURCES

- [Office of the Data Protection Commissioner — Data Protection Laws Kenya](#)
- [ODPC — Rights of a Data Subject](#)
- [ODPC — Data Protection General Regulations, 2021](#)
- [ODPC — Guidelines and guidance notes](#)
- [ODPC — Assessments / compliance controls](#)
- [Kenya Law — Consumer Protection Act](#)

Final publication checklist: Do not publish this draft until the actual legal entity, privacy contact, registered address, processor list, retention periods, cookie/SDK inventory, age-assurance design, cross-border transfer mechanisms, payment providers, breach workflow and complaint channels have been verified against the deployed Sparkle system and reviewed by qualified Kenyan counsel.